

Intro to judicial review- Beyond Power

A decision that is 'beyond power' describes and applies to circumstances where the administrative decision-maker or delegate or administrator has acted beyond the power given. The term, 'administrator', in the present context refers to government.

instrumentalities, statutory authorities, government corporations and Ministerial departments which, in the process of making administrative decisions, may exercise powers improperly.

This doctrine applies to curb and prevent the misuse of such power by these bodies in the discharge of an administrative function.

The doctrine applies in ways similar to those dealt with in the previous topic where delegated legislation and the checks and balances placed upon it were discussed.

This principle is relevant in this context in two ways: the first is that the making of an administrative decision must have its origin in law (legislation) which grants the power exercised. If it does not, the exercise of such power is said to be *ultra vires*—that is, it is outside the powers granted by the relevant legislation, and thus, invalid. A power, for example, to grant a licence to drive a taxi, does not authorise the granting of a licence to drive a truck. The granting of a licence for the latter purpose would clearly be outside the ambit of the statute, and thus, invalid because it exceeds the power intended to be given by that statute.

Activity

Exercise 7.1

What is the key administrative law principle established in the following cases?

- London City Council v Attorney-General [1902] AC 165
- Vickers v Minister For Business and Consumer Affairs (1982) 43 ALR 389
- Boyle v Charge (1987) 73 ALR 446.

The basic principle is that governments and their officers cannot do anything that they are not authorised by law to do: see *Entick v Carrington* (1765) 19 St Tr 1030.

Authority might be provided either by the Constitution, by a statute or by common law. In this topic we are concerned with statute law. An administrative official cannot perform acts or make decisions that go beyond what is permitted by the statute that is the source of his or her power. It is therefore always crucial to read the statute and consider 'what does this statute allow?' If a decision or action does not seem to be allowed by the statute, then it may be *ultra vires*.

They cannot perform acts or make decisions that go beyond what is permitted by the statute that is the source of his or her power. *A v Hayden* (No 2) (1984) 156 CLR 532;

Church of Scientology Inc v Woodward (1982) 154 CLR 25; and Congreve v Home Office [1976] QB 629, each of which, in its context and on its facts, confirms this view. It is always crucial to read the statute and consider what it allows. Many of the cases concern provisions that grant general powers to administrative officials to make regulations, for example a power to do what is 'necessary or convenient' for a particular activity. Another form of general power is a power to 'regulate' an activity. Questions may arise if a decision-maker with the power to regulate seeks to prohibit an activity. The question that must be asked is whether prohibition is consistent with a power to regulate. For example, administrative officials often use such powers to make regulations, by-laws or policies. The validity of those instruments (and decisions made under them) depends on whether they are permitted by the statute. The question to ask is: does the statute appear to provide authority for this particular regulation, by-law or policy? Problems arise when a decision-maker granted power to regulate seeks to prohibit all or part of a particular activity. The question is whether prohibition is, in some instances, consistent with a power to regulate, or whether it falls outside the scope of the power, and is therefore ultra vires. Similar problems arise with the grant of a power to 'prevent' or 'restrain'

Reading

- ADJR Act s 5(1)(d)

Activity

Exercise 7.2

Identify the key principle in the following cases:

- Shanahan v Scott (1957) 96 CLR
- Foley v Padley (1984) 154 CLR 349

For a long time, courts distinguished between mandatory and directory rules. A mandatory rule was one that had to be followed: a non-complying decision was almost inevitably declared ultra vires. A directory rule was one that did not have to be followed, or at least, did not have to be strictly followed. A decision made without compliance with a directory procedure would not usually be declared ultra vires. The High Court eventually held that this distinction was not an appropriate means of determining the effect of a failure to follow procedural requirements.

Reading

- ADJR Act s.5(1)(b), s.6(1)(b)

Activity

- Exercise 7.3

- Identify the relevant discussion in *Project Blue Sky v Australian Broadcasting Authority* (1998) 194 CLR 355.
- The general principle is that decision-makers may not disregard express procedural requirements. What constitutes an express procedural requirement in a statutory scheme should be determined using the principles of statutory construction set out in *Project Blue Sky v Australian Broadcasting Authority* (1998) 194 CLR 355.

Exercise 7.4

- How does the decision of *Municipal Council of Sydney v Campbell* [1925] AC 338 impact on the improper use of power?

Exercise 7.5

- To which grounds for review under the doctrine of ultra vires does the decision in *Roberts v Hopwood* [1925] AC 578 apply?